



Memorandum of Understanding Between College Now Greater Cleveland And Brecksville-Broadview Hts High School

I. Background

The mission of College Now Greater Cleveland (COLLEGE NOW) is to increase college attainment through college and career access advising, financial aid counseling, and scholarship and retention services. For over 50 years, our goal has been to help students pursue educational opportunities that empower them to embark on rewarding careers and strengthen our community.

II. Purpose and Scope

The purpose of this Memorandum of Understanding (MOU) is to clearly define the roles and responsibilities of each party as it relates to: (1) an Advising Plan for advising BRECKSVILLE-BROADVIEW HTS HIGH SCHOOL students and their parents; (2) a plan for data exchange; (3) a plan to make Brecksville-Broadview Hts High School personnel aware of COLLEGE NOW services; (4) a plan to provide space and resources for the on-site COLLEGE NOW advisor; (5) a plan to recommend Brecksville-Broadview Hts High School seniors for scholarships from COLLEGE NOW, provided that funding is available; and (6) a plan to evaluate the COLLEGE NOW advisor and services provided.

This MOU is intended to provide a written acknowledgement of collaboration between the organizations.

III. Definitions

For the purposes of this MOU,

- STUDENT shall refer to a student who is enrolled in Brecksville-Broadview Hts High School, unless Brecksville-Broadview Hts High School informs COLLEGE NOW otherwise.
- RECOMMENDED STUDENT shall refer to a senior student who has met the COLLEGE NOW application deadlines for the scholarship application, Free Application for Federal Student Aid (FAFSA), graduation and minimum cumulative grade point average and ACT/SAT testing requirements, and who has turned in required paperwork to the COLLEGE NOW advisor by the deadline.
- ADVISING SERVICES are any services selected on the attached Menu of Advising Services that the Brecksville-Broadview Hts High School contracts with COLLEGE NOW to provide as part of the Advising Plan.
- A DAY OF SERVICE equals 7 hours. A HALF DAY OF SERVICE equals 3.5 hours.
- DATA includes any student information such as demographic information, cumulative grade point averages, ACT/SAT scores, and expected year of graduation.

IV. College Now Responsibilities under this MOU

1. COLLEGE NOW Advisor will be available to speak with staff on issues of the college going process.
2. COLLEGE NOW will provide a trained college access Advisor for the amount of time requested by Brecksville-Broadview Hts High School in no less than half day increments. Evening presentations count as half days.
3. COLLEGE NOW Advisor will provide THREE PRINCIPAL SERVICES: ADVISING, FINANCIAL AID, AND SCHOLARSHIP SERVICES, as well as, or as specifically substituted by the additional services indicated by Brecksville-Broadview Hts High School on the attached Menu of Advising Services, or in subsequent conversations with COLLEGE NOW.
4. COLLEGE NOW will provide its Advisor with a cell phone, laptop computer and printer.
5. COLLEGE NOW will send a semi-annual evaluation to the designated Brecksville-Broadview Hts High School counselor asking for feedback about COLLEGE NOW services. The feedback from these evaluations is used for customer service, training, professional development, and performance evaluation purposes.
6. COLLEGE NOW Advisor will recommend seniors for COLLEGE NOW scholarships, when funding is available.

7. As part of the data exchange, referred to Paragraph VI and the “Data Exchange Addendum” to this MOU, COLLEGE NOW will submit names of Brecksville-Broadview Hts High School students who were served by the COLLEGE NOW Advisor to the National Student Clearinghouse in order to obtain post-secondary persistence and graduation information. COLLEGE NOW is FERPA complaint (See explanation for details).
8. COLLEGE NOW will provide a year-end summary of services provided, students served, and COLLEGE NOW scholarship(s) awarded students (if applicable) to Brecksville-Broadview Hts High School.

V. School Responsibilities under this MOU

1. Brecksville-Broadview Hts High School will provide working space and internet access.
2. Brecksville-Broadview Hts High School will provide access to a copy machine to be used only in the servicing of students’ needs.
3. Brecksville-Broadview Hts High School will publicize COLLEGE NOW services at the school and make all reasonable attempts to ensure access to students.

VI. Data Requirements

Brecksville-Broadview Hts High School will, by September 30th, and again by January 30th, provide an electronic student data roster of grade levels Brecksville-Broadview Hts High School consisting of student name, address, date of birth, grade level, GPA, and ACT/SAT scores. The student data template can be emailed to rosters@collegenowgc.org. (See FERPA explanation for details).

COLLEGE NOW Advisors rely on accurate and timely rosters to maximize service opportunities to students. It is critical to our success that this information is received in advance of Advisors arriving in schools to serve students. **Data received after September 30th and/or January 30th may jeopardize the efficiency and effectiveness of the Advisor’s work.** The “Data Exchange Addendum” is required and is made a part of this MOU.

VII. Personnel Background Check

All COLLEGE NOW Advisors have undergone drug and background screenings.

VIII. Reporting Responsibilities

COLLEGE NOW agrees to report to High School authorities any suspected child abuse or neglect as these terms are defined under Ohio Revised Code 2151.03 that jeopardizes the physical and/or emotional well-being of a student.

IX. INDEMNIFICATION AND HOLD HARMLESS

COLLEGE NOW agrees to indemnify, defend, and hold harmless Brecksville-Broadview Hts High School, all of its members, officers, employees, and agents from and against any and all liability (whether real or asserted) claims, demands expenses, costs (including legal fees), and causes of action of any nature whatsoever for personal and bodily injury or death of persons or damage or destruction of property which may result from and arise out of the negligence or intentional misconduct of COLLEGE NOW, its employees, officers, agents, subcontractors, or interns screened, selected and/or trained by Contractor, in the performance of this Agreement. The District reserves the right to use counsel of its own choosing, at its own expense, with regard to any such claim for which indemnification and defense is sought. This indemnification obligation shall survive the term of this Agreement.

X. Independent Contractor

COLLEGE NOW and Brecksville-Broadview Hts High School acknowledge and agree that COLLEGE NOW is an independent contractor and has no authority to bind Brecksville-Broadview Hts High School or otherwise act as a representative of Brecksville-Broadview Hts High School. COLLEGE NOW shall retain the right to exercise full control and supervision over its employees, compensation and discharge, and agrees to be solely responsible for all matters relating to its employees, including, but not limited to, compliance with social security, withholding, workers’ compensation, and all other regulations governing such employment matters.

XI. Confidentiality/Ownership

COLLEGE NOW agrees that all financial, statistical, proprietary, or student information provided by Brecksville-Broadview Hts High School or any information that COLLEGE NOW may acquire, directly or indirectly which relates to Brecksville-Broadview Hts High

School will be kept confidential and not used by or released to any third party or parties without the prior written consent of Brecksville-Broadview Hts High School. COLLEGE NOW further agrees that any written material (e.g., report, study, etc.) developed for Brecksville-Broadview Hts High School and all rights, title and interest therein shall belong exclusively to Brecksville-Broadview Hts High School. Brecksville-Broadview Hts High School shall be entitled to obtain copyright or any similar such protection for any deliverables furnished by COLLEGE NOW hereunder and that any such material is considered a "work-for-hire."

XII. MOU Modification and Termination

It is mutually understood and agreed by and between the parties that:

- This agreement may be modified by mutual agreement of COLLEGE NOW and Brecksville-Broadview Hts High School.
- This agreement will be revisited each spring in preparation for the upcoming academic year.

XIII. COLLEGE NOW and Brecksville-Broadview Hts High School Contacts:

College Now Greater Cleveland	High School
Lee Friedman Chief Executive Officer 216-241-5587 lfriedman@collegenowgc.org	Principal:
Tax ID Number 34-6580096	Billing:
Lauren Seymour Director, Advising Services and Programs lseymour@collegenowgc.org	
216-635-0137	
Victor Courtney Manager, Advising Services and Programs 216-635-0156 vcourtney@collegenowgc.org	School Counselor:
Jeff McKissick Chief Information Officer 216-241-5587 jmckissick@collegenowgc.org	IT Contact:

XIV. Term and Payment

This agreement takes effect on **August** _____, **2021** and ends on **June** _____, **2022**. Preferred starting date as arranged with Brecksville-Broadview Hts High School staff: _____. records.

Brecksville-Broadview Hts High School requests _____ **days of COLLEGE NOW services (15 day minimum)** and will:

☐ Submit Complete Student Data Roster Daily Rate is \$450.00	OR	☐ Not Submit Complete Student Data Roster Daily Rate is \$515.00
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Daily Rate \$450 _____ x **15** _____ **Days of service** equals the **Total Contract amount of \$6750** _____.

If our services will be paid via another party, such as an auxiliary service by your local school district, please provide College Now with a copy of the Supplier Contract between the school and the payor for our accounting department's records.

COLLEGE NOW invoices in October for the total amount due. Checks should be made payable to College Now Greater Cleveland, Inc. and mailed to COLLEGE NOW at Post Office Plaza, 1500 West 3rd Street, Suite 125 Cleveland, OH 44113.

XV. Effective Date and Signatures

This MOU shall be in effect upon the signatures of the organizations' authorized officials. Agreement is indicated by the signatures and dates below:

Lee Freedman
COLLEGE NOW Authorizing
Official Title



Signature

CEO
Official Title

Date

Brecksville-Broadview Hts High School Authorizing

Signature

Date

What Is FERPA?

The Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g; 34 CFR Part 99) is a Federal law that protects the privacy of student education records. The law applies to all schools that receive funds under an applicable program of the U.S. Department of Education. FERPA gives parents certain rights with respect to their children's education records. These rights transfer to the student when he or she reaches the age of 18 or attends a school beyond the high school level. Students to whom the rights have transferred are "eligible students." Full text of FERPA is located here: <http://www2.ed.gov/policy/gen/guid/fpco/ferpa/index.html>.

- Parents or eligible students have the right to inspect and review the student's education records maintained by the school. Schools are not required to provide copies of records unless, for reasons such as great distance, it is impossible for parents or eligible students to review the records. Schools may charge a fee for copies.
- Parents or eligible students have the right to request that a school correct records which they believe to be inaccurate or misleading. If the school decides not to amend the record, the parent or eligible student then has the right to a formal hearing. After the hearing, if the school still decides not to amend the record, the parent or eligible student has the right to place a statement with the record setting forth his or her view about the contested information.
- Generally, schools must have written permission from the parent or eligible student in order to release any information from a student's education record. **However, FERPA allows schools to disclose those records, without consent, to the following parties or under the following conditions (34 CFR § 99.31):**
 - School officials with legitimate educational interest;
 - Other schools to which a student is transferring;
 - Specified officials for audit or evaluation purposes;
 - **Appropriate parties in connection with financial aid to a student;**
 - Organizations conducting certain studies for or on behalf of the school;
 - Accrediting organizations;
 - To comply with a judicial order or lawfully issued subpoena;
 - Appropriate officials in cases of health and safety emergencies; and
 - State and local authorities, within a juvenile justice system, pursuant to specific State law.

COLLEGE NOW and FERPA

We are very pleased to provide advising services at your school this year. We value our relationship and the opportunity to serve your families, and are grateful for the confidence you place in us. Part of the College Now advisor's job is to track in a web-based student database all the services provided to the students within a school. As you may imagine, this is a large part of the job and can require a fair amount of time. It is necessary however, for several reasons:

- College Now is a non-profit organization and we rely on grant and donor funding for a large part of our budget and the ability to offer our services at a subsidized rate. As a result, we need to report to our funders aggregate (not student-level) data about our advising work.
- College Now continually works to improve services, achieve outcomes, and maximize effort at the lowest cost using collected data from our services.
- College Now subscribes to the National Student Clearinghouse (NSC) so that we may obtain persistence and graduation rates for the students we work with. In order to receive accurate data from NSC, we must have accurate student data.
- The ability to reduce data entry time increases our ability to serve more students and families.

- At the end of the year, College Now will provide a report to you about our advising work in your school. We want that report to provide a complete picture of all the work we have done with your students. Data allows us to provide a more comprehensive college and career readiness analysis.

Per the MOU we are requesting an electronic student data set that conforms to the template attached. **Per the legislative text above, College Now is a qualifying organization to receive, transmit, and securely handle your student-level data.** If you have any questions, please contact College Now's Chief Information Officer, Jeff McKissick, at jmckissick@collegenowgc.org. Thank you.



ADVISING PLAN APPENDIX

This appendix is made to the Memorandum of Understanding (MOU)
Between College Now Greater Cleveland and Brecksville-Broadview Hts High School
dated _____

COLLEGE NOW Advisor will provide the services indicated by Brecksville-Broadview Hts High School on this Advising Plan. Brecksville-Broadview Hts High School selection may warrant a conversation about adjusting the specific services selected in order to accommodate the number of service days requested, or about increasing the number of COLLEGE NOW service days requested in order to accommodate the selection of services.

Please check off the services requested and return with signed Memorandum of Understanding.

_____ **days of COLLEGE NOW services (15 day minimum)**

Career Exploration: Grade levels 9 ____, 10 ____, 11 ____, 12 ____

- ☐ Career planning & exploration: Using online planning tools to discover each student's best fit careers, and match to postsecondary education pathways. This may include using COLLEGE NOW's MAP (Managing Advancement Programs), a searchable database of available postsecondary training opportunities that lead to living wage employment. The use of MAP requires the completion of the "Managing Advancement Programs (MAP) Partner Agreement".

Postsecondary Test Preparation & Registration: Grade levels 9 ____, 10 ____, 11 ____, 12 ____

- ☐ ACT/SAT introduction: Explanation of college entrance exams and their importance for admissions and scholarships
- ☐ ACT/SAT preparation: Demonstration of resources available to prepare for the tests, as well as explaining test-taking strategies
- ☐ ACT/SAT registration: Assisting with test registration for national dates (using fee waivers when applicable)

College Exploration, Application, & Enrollment: Grade levels 9 ____, 10 ____, 11 ____, 12 ____

- ☐ College search & exploration: Using online planning tools to discover each student's target list of best fit colleges
- ☐ College planning: Understanding the college application process, including deadlines and document requirements
- ☐ College applications: Assistance in starting and completing college applications (using fee waivers when applicable)
- ☐ College essays: Assistance in college essay writing, editing, and review
- ☐ College enrollment: Assistance in selecting an institution and understanding the enrollment process, including paying deposits (using fee waivers when applicable) and registering for orientation and/or summer bridge programming

College Affordability: Grade levels 9 ____, 10 ____, 11 ____, 12 ____

- ☐ Financial literacy: Understanding various terms related to financial aid, including grants, loans, and interest rates
- ☐ FAFSA planning: Preparing to complete the FAFSA, including creation of FSA IDs and gathering of required tax documents
- ☐ Financial aid applications: Assistance with starting and completing financial aid applications, including FAFSA and CSS Profile
- ☐ Verification & special circumstances: Assisting the student when additional steps are required to receive financial aid
- ☐ Award letter comparison: Understanding the differences and similarities between each financial aid package

Scholarship Services: Grade levels 9 ____, 10 ____, 11 ____, 12 ____

- ☐ Scholarship searching: Understanding the best resources and locations to search for scholarships
- ☐ Scholarship essays: Assistance in scholarship essay writing, editing, and review
- ☐ College Now Scholarships: Assist in the application process for College Now Scholarships, provided funding is available

Special Programs included with in-school advising services: Grade levels 9 ____, 10 ____, 11 ____, 12 ____

- ☐ Senior Parent Night: After school hours presentation by advisor on the senior year timeline, including the necessary steps to apply for college and financial aid
- ☐ Junior Parent Night: After school hours presentation by advisor on how parents can prepare for any postsecondary-related activities, including understanding testing deadlines and the senior year timeline
- ☐ College Affordability Night: After school hours presentation by advisor on financial aid terminology and application deadlines, including grants, loans, common issues, and scholarship resources
- ☐ FAFSA Night: One-on-one assistance after school hours for students and families to complete all components of the FAFSA with a College Now advisor
- ☐ Transition to College Program: In-school opportunity for seniors to dialogue with current college students on their personal challenges, opportunities, and experiences of transitioning from high school to pursuing postsecondary education

Additional Program Offerings:

- ☐ College Visits: Up to \$2,000 for a day trip to include round-trip transportation and cost of food for up to 40 individuals
Number of visits requested: ____
- ☐ ACT or SAT Boot Camps: \$3,000 for 16 hours of intensive curriculum-driven test preparation for small groups of students
Number of boot camps requested: ____

COLLEGE NOW Authorizing

Official Title

Brecksville-Broadview Hts
High School Authorizing

Official Title

Lee Freedman

CEO





DATA EXCHANGE APPENDIX

College Now Greater Cleveland and Brecksville-Broadview Hts High School
dated _____

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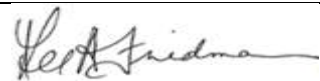
COLLEGE NOW Data Requirements (as outlined in Article VI of the MOU)

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Listed below are the contacts who will coordinate the data exchange on behalf of COLLEGE NOW and Brecksville-Broadview Hts High School

COLLEGE NOW Data Exchange Contact	Brecksville-Broadview Hts High School Data Exchange Contact
Jeff McKissick, Chief Information Officer	
216.241.5587	
jmckissick@collegenowgc.org	

COLLEGE NOW Authorizing	Official Title	Brecksville-Broadview Hts High School Authorizing	Official Title
Lee Freedman	CEO		



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 - School officials with legitimate educational interest;
 - Other schools to which a student is transferring;
 - Specified officials for audit or evaluation purposes;
 - **Appropriate parties in connection with financial aid to a student;**
 - Organizations conducting certain studies for or on behalf of the school;
 - Accrediting organizations;
 - To comply with a judicial order or lawfully issued subpoena;
 - Appropriate officials in cases of health and safety emergencies; and
 - State and local authorities, within a juvenile justice system, pursuant to specific State law.